

who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed.” A court can find that there is no substantial justification when a party served discovery responses on the night before the hearing on the discovery motion when the party failed for months to produce documents and discovery responses. (*Deck v. Developers Investment Co., Inc.* (2023) 89 Cal.App.5th 808, 831.) Even when it is highly disputed whether the last-minute production was full, “(i)t is enough that it was untimely in the extreme and only done once Plaintiff had incurred the cost of bringing a motion to compel.” (*Ibid.*)

Here, the Motions were filed on August 24, 2026, and served on August 26, 2026, which is the same day that the discovery responses were served. It does not appear that Petitioner responded to discovery in response to the Motions. Instead, Petitioner was under the mistaken belief that a lack of objection served as an agreement to a request to extend the discovery deadline.

FL-18-00446 DeSilva, Michelle vs. DeSilva, Damon

The status conference is continued to October 21, 2026, at 8:30 a.m. to be heard along with Petitioner’s Motion to Compel.

FL-25-00190 Marquez Gonzalez, Jorge vs. Loera Garcia, Alejandra

Respondent’s Request for Order to Set Aside Orders pursuant to California Code of Civil Procedure section 473(b) is DENIED.

The court has authority to set aside default and default judgment when the entry of the same was caused by the mistake, inadvertence, surprise, or neglect of a party. (Cal. Code Civ. Proc. §473(b).) Similarly, a default and default judgment may be set aside when it was caused by the mistake, inadvertence, surprise, or excusable neglect of the defendant or some other third party. The distinction is that the set aside of the default for the mistake, inadvertence, surprise, or neglect of an attorney is, upon proper declaration of the attorney, mandatory, whereas set side in the other instance is discretionary for the court. Additionally, a default and default judgment may be set aside when the default or default judgement is void. (Cal. Code Civ. Proc. v§473(d).)